

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DONNA WALKER, KENDRA ESANNASON &
JASMINELEE MEJIA

Plaintiffs

-against-

SUMMONS

Index Number:

Date Purchased:

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK
CITY POLICE OFFICER and JOHN DOES's
1-10, members of THE NEW YORK CITY
POLICE DEPARTMENT, whose identities have
not yet been determined.

Defendants.

----- X
To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within twenty (20) days after service of this summons upon you, exclusive of the day of service, (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 16, 2013

Kyle B. Watters
Watters & Svetkey LLP.
286 Madison Avenue - Suite 2200
New York, N.Y. 10017
(212) 679-8999

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DONNA WALKER, KENDRA ESANNASON &
JASMINELEE MEJIA

Plaintiffs

COMPLAINT
Index Number:

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK
CITY POLICE OFFICER and JOHN DOES's
1-10, members of THE NEW YORK CITY
POLICE DEPARTMENT, whose identities have
not yet been determined.

Defendants.

----- X
Plaintiffs, for their Verified Complaint, by their attorneys, WATTERS &
SVETKEY, LLP, states and alleges the following upon information and belief:

The Parties

1. At all times hereinafter mentioned, the plaintiff, DONNA WALKER, is a resident of the County of New York, State of New York.
2. At all times hereinafter mentioned, the plaintiff, KENDRA ESANNASON is a resident of the County of New York, State of New York.
3. At all times hereinafter mentioned, the plaintiff, JASMINELEE MEJIA, is a resident of the County of New York, State of New York.

4. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, [hereinafter "The City"] is a municipal corporation organized and existing under, and by virtue of, the laws of the State of New York.

5. At all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintains its principal office in the County of New York, State of New York.

6. At all times relevant hereto JOHN DOES # 1-10 were police officers employed by the New York City Police Department to perform duties in the City of New York.

Conditions Precedent For The Instant Action

7. On May 2, 2013, all named plaintiffs filed a Notice of Claim with the defendant, The City, for adjustment of damages sustained by the plaintiffs herein.

8. On August 9th and 12th, 2013, the defendant, The City, took each individual plaintiff's deposition pursuant to Section 50-h of the General Municipal Law.

9. More than thirty (30) days has elapsed since serving the aforementioned Notice of Claim and to this date, the defendant, THE CITY, has neglected and refused to make adjustment thereon.

10. The earliest date of accrual for the causes of action being March 29, 2013, less than one year and ninety (90) days has elapsed before the commencement of

this action.

The Incident

11. The claims arise from the arrests and detentions of plaintiffs Donna Walker, Kendra Esannason and Jasminelee Mejia on Friday, March 29, 2013 at 129 West 147th Street apartment 4F, New York, New York 10039.

12. On that date, sometime after noon, plaintiff Donna Walker who was fifty-seven years old at the time, was in her bedroom on her bed in her nightgown.

13. On that date, sometime after noon, plaintiffs Kendra Esannason and Jasminelee Mejia were on a bed on the living room floor of the apartment.

14. At about that time on that date over ten unidentified police officers, including but not limited to, John Does # 1-10, broke down the door and entered the apartment with guns drawn and a police dog and told plaintiffs Esannason and Mejia to freeze.

15. The police handcuffed both Esannason and Mejia behind their backs.

16. Police Officer John Doe #1, ran into plaintiff Donna Walker's bedroom, stood at the foot of her bed, said don't move, and pointed a shotgun at her inches from her face.

17. Police Officer John Doe #1 then rear handcuffed plaintiff Donna Walker and took her to the living room.

18. Several unidentified police officers took plaintiffs Donna Walker and Kendra Essanason out of the apartment at about 4:00 p.m.

19. The police then took plaintiffs Walker, Essanason and Mejia, all of whom were still handcuffed, to a police precinct.

20. At the precinct, plaintiffs Esannason and Mejia were housed in a cell for about six hours.

21. At the precinct, plaintiff Donna Walker was left for several hours seated in a chair with both her hands handcuffed around a poll.

22. The police then took plaintiff Donna Walker to a holding cell where they confiscated medication that police officers at the apartment had allowed her to bring with her to the precinct and refused her request to allow her to take her medication.

23. At about midnight, plaintiffs Walker, Esannason and Mejia were taken to Manhattan central booking in a police van.

24. Plaintiff Donna Walker was made to ride on the floor of the van to central booking.

25. Upon her arrival at Central Booking, plaintiff Donna Walker was taken to Bellevue Hospital, while still handcuffed, and treated for dehydration and other ailments.

26. At Bellevue Hospital, she was handcuffed to a guernsey while being treated by hospital staff with two officers guarding her.

27. Plaintiff Donna Walker was discharged from Bellevue Hospital at approximately 12 noon that Saturday, March 30, 2013.

28. Police officers then took plaintiff Donna Walker to the 82nd precinct.

29. Plaintiff Donna Walker was put in a holding cell at the 82nd precinct for approximately three to four hours.

30. Sometime the evening of Saturday, March 30, 2013, the police released plaintiff Donna Walker and allowed her to go home.

31. There was no case processed against plaintiff Donna Walker and all charges against her were dropped.

32. At about 5:30 p.m., March 30, 2013, plaintiffs Esannason and Mejia were told at central booking that the charges were dropped and were let go.

32a. Plaintiff Esannason hands went numb at one point due to the excessive tightness of the handcuffs placed around her wrists.

33. At some point while handcuffed, Plaintiff Mejia complained that the handcuffs were too tight and experienced such pain that she started to cry.

34. Plaintiff Mejia still suffers pain to her wrist which has a permanent bump produced by the handcuffs.

AS AND FOR A FIRST CAUSE OF ACTION
PLAINTIFF DONNA WALKER
FALSE ARREST

35. Plaintiff Donna Walker repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "34" of this Complaint, with the same force and effect as if more fully set forth herein.

36. At the above time and place, plaintiff Donna Walker was illegally arrested, stopped and detained by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited to JOHN DOES # 1-10, (all within the scope of their employment), in violation of her rights under the New York State Constitution and New York State Law.

37. At the above time and place, plaintiff Donna Walker was consciously aware of her physical arrest, did not consent to it, and was otherwise harmed by it.

38. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

39. Plaintiff Donna Walker was illegally seized and detained for a period of time. These actions of said defendants constituted false arrest as to plaintiff Donna Walker.

40. As a consequence of said defendants' actions, plaintiff Donna Walker was deprived of her freedom for a period of time, suffered injuries, and was subjected

to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

41. The individually named defendants and defendants John Does #1-10, involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity to intervene to prevent such false arrest from occurring.

42. By reason of the foregoing, plaintiff Donna Walker has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
PLAINTIFF KENDRA ESANNASON
FALSE ARREST

43. Plaintiff Kendra Esannason repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "42" of this Complaint, with the same force and effect as if more fully set forth herein.

44. At the above time and place, plaintiff Kendra Esannason was illegally arrested, stopped and detained by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited to JOHN DOES # 1-10, (all within the scope of their employment), in violation of her rights under the New York State Constitution and New York State Law.

45. At the above time and place, plaintiff Kendra Esannason was consciously aware of her physical arrest, did not consent to it, and was otherwise harmed by it.

46. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

47. Plaintiff Kendra Esannason was illegally seized and detained for a period of time. These actions of said defendants constituted false arrest as to plaintiff Kendra Esannason.

48. As a consequence of said defendants' actions, plaintiff Kendra Esannason was deprived of her freedom for a period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

49. The individually named defendants and defendants John Does #1-10, involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity to intervene to prevent such false arrest from occurring.

50. By reason of the foregoing, plaintiff Kendra Esannason has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A THIRD CAUSE OF ACTION
PLAINTIFF JASMINELEE MEJIA
FALSE ARREST

51. Plaintiff Jasminelee Mejia repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "50" of this Complaint, with the same force and effect as if more fully set forth herein.

52. At the above time and place, plaintiff Jasminelee Mejia was illegally arrested, stopped and detained by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited to JOHN DOES # 1-10, (all within the scope of their employment), in violation of her rights under the New York State Constitution and New York State Law.

53. At the above time and place, plaintiff Jasminelee Mejia was consciously aware of her physical arrest, did not consent to it, and was otherwise harmed by it.

54. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

55. Plaintiff Jasminelee Mejia was illegally seized and detained for a period of time. These actions of said defendants constituted false arrest as to plaintiff Jasminelee Mejia.

56. As a consequence of said defendants' actions, plaintiff Jasminelee Mejia was deprived of her freedom for a period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

57. The individually named defendants and defendants John Does #1-10, involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity to intervene to prevent such false arrest from occurring.

58. By reason of the foregoing, plaintiff Jasminelee Mejia has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION
PLAINTIFF DONNA WALKER
FALSE IMPRISONMENT

59. Plaintiff Donna Walker repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "58" of this Complaint, with the same force and effect as if more fully set forth herein.

60. As a result of the illegal stop and detention of plaintiff Donna Walker by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited defendants JOHN DOES # 1-10 (all within the scope of their employment), plaintiff was falsely imprisoned, in

violation of her rights under the New York State Constitution and New York State Law, in that she was not free to leave, but rather, subject to imprisonment for an unreasonable period of time.

61. At the above time and place, plaintiff Donna Walker was consciously aware of her physical confinement, did not consent to it, and was otherwise harmed by it.

62. That such physical confinement was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification. As a consequence of said defendants' actions, plaintiff Donna Walker was deprived of her freedom for a considerable period of time, suffered injuries, and were subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

63. The individually named defendants and defendants JOHN DOES # 1-10, involved in such false imprisonment knew or had reason to know, upon information and belief, that such imprisonment was false, and had a realistic opportunity to intervene to prevent such false imprisonment from occurring.

64. By reason of the foregoing, plaintiff Donna Walker has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
PLAINTIFF KENDRA ESANNASON
FALSE IMPRISONMENT

65. Plaintiff Kendra Esannason repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "64" of this Complaint, with the same force and effect as if more fully set forth herein.

66. As a result of the illegal stop and detention of plaintiff Kendra Esannason by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited defendants JOHN DOES # 1-10 (all within the scope of their employment), plaintiff was falsely imprisoned, in violation of her rights under the New York State Constitution and New York State Law, in that she was not free to leave, but rather, subject to imprisonment for an unreasonable period of time.

67. At the above time and place, plaintiff Kendra Esannason was consciously aware of her physical confinement, did not consent to it, and was otherwise harmed by it.

68. That such physical confinement was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification. As a consequence of said defendants' actions, plaintiff Kendra Esannason was deprived of her freedom for a considerable period of time, suffered injuries, and was

subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

69. The individually named defendants and defendants JOHN DOES # 1-10, involved in such false imprisonment knew or had reason to know, upon information and belief, that such imprisonment was false, and had a realistic opportunity to intervene to prevent such false imprisonment from occurring.

70. By reason of the foregoing, plaintiff Kendra Esannason has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
PLAINTIFF JASMINELEE MEJIA
FALSE IMPRISONMENT

71. Plaintiff Jasminelee Mejia repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "70" of this Complaint, with the same force and effect as if more fully set forth herein.

72. As a result of the illegal stop and detention of plaintiff Jasminelee Mejia by the individually named defendants, and The City, through the actions of its agents, employees and officer(s), including but not limited defendants JOHN DOES # 1-10 (all within the scope of their employment), plaintiff was falsely imprisoned, in violation of her rights under the New York State Constitution and New York State Law, in that she was not free to leave, but rather, subject to imprisonment for an

unreasonable period of time.

73. At the above time and place, plaintiff Jasminelee Mejia was consciously aware of her physical confinement, did not consent to it, and was otherwise harmed by it.

74. That such physical confinement was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification. As a consequence of said defendants' actions, plaintiff Jasminelee Mejia was deprived of her freedom for a considerable period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

75. The individually named defendants and defendants JOHN DOES # 1-10, involved in such false imprisonment knew or had reason to know, upon information and belief, that such imprisonment was false, and had a realistic opportunity to intervene to prevent such false imprisonment from occurring.

76. By reason of the foregoing, plaintiff Jasminelee Mejia has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION
PLAINTIFF DONNA WALKER
EXCESSIVE FORCE

77. Plaintiff Donna Walker repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "76" this Complaint, with the same force and effect as if more fully set forth herein.

78. Defendants John Does #1-10 and other unnamed police officers acting individually and within the scope of their employment, engaged in the aforementioned conduct which constituted assault and battery and unreasonable and excessive force by said defendants in violation of plaintiff Donna Walker's rights under the New York State Constitution and New York State Law.

79. Such actions were improper as said defendants had a duty not to subject plaintiffs to any excessive use of force, but failed to prevent such excessive use of force.

80. Plaintiff Donna Walker did nothing to warrant or justify the amount of force used by defendants, which was not reasonable under the circumstances and was unjustified and illegal.

81. As a consequence of said defendants' wrongful actions, plaintiff Donna Walker suffered physical injury.

82. Plaintiff Donna Walker was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer physical pain and impairment, and mental and emotional distress, and fears repetition of said unlawful conduct by said defendants.

83. Each of the said defendants involved in such excessive force knew, or had reason to know, upon information and belief, that such use of force was excessive, and had a realistic opportunity to intervene to prevent such excessive use of force from occurring.

84. By reason of the foregoing, plaintiff Donna Walker have been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A EIGHTH CAUSE OF ACTION
PLAINTIFF KENDRA ESANNASON
EXCESSIVE FORCE

85. Plaintiff Kendra Esannason repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "84" this Complaint, with the same force and effect as if more fully set forth herein.

86. Defendants John Does #1-10 and other unnamed police officers acting individually and within the scope of their employment, engaged in the aforementioned conduct which constituted assault and battery and unreasonable and excessive force by said defendants in violation of plaintiff Kendra

Esannason's rights under the New York State Constitution and New York State Law.

87. Such actions were improper as said defendants had a duty not to subject plaintiffs to any excessive use of force, but failed to prevent such excessive use of force.

88. Plaintiff Kendra Esannason did nothing to warrant or justify the amount of force used by defendants, which was not reasonable under the circumstances and was unjustified and illegal.

89. As a consequence of said defendants' wrongful actions, plaintiff Kendra Esannason suffered physical injury.

90. Plaintiff Kendra Esannason was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer physical pain and impairment, and mental and emotional distress, and fears repetition of said unlawful conduct by said defendants.

91. Each of the said defendants involved in such excessive force knew, or had reason to know, upon information and belief, that such use of force was excessive, and had a realistic opportunity to intervene to prevent such excessive use of force from occurring.

92. By reason of the foregoing, plaintiff Kendra Esannason have been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

AS AND FOR A NINTH CAUSE OF ACTION
PLAINTIFF JASMINELEE MEJIA
EXCESSIVE FORCE

93. Plaintiff Jasminelee Mejia repeats, reiterates, and realleges each and every allegation set forth in paragraphs "1" through "92" this Complaint, with the same force and effect as if more fully set forth herein.

94. Defendants John Does #1-10 and other unnamed police officers acting individually and within the scope of their employment, engaged in the aforementioned conduct which constituted assault and battery and unreasonable and excessive force by said defendants in violation of plaintiff Jasminelee Mejia's rights under the New York State Constitution and New York State Law.

95. Such actions were improper as said defendants had a duty not to subject plaintiffs to any excessive use of force, but failed to prevent such excessive use of force.

96. Plaintiff Jasminelee Mejia did nothing to warrant or justify the amount of force used by defendants, which was not reasonable under the circumstances and was unjustified and illegal.

97. As a consequence of said defendants' wrongful actions, plaintiff Jasminelee

Mejia suffered physical injury.

98. Plaintiff Jasminelee Mejia was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer physical pain and impairment, and mental and emotional distress, and fears repetition of said unlawful conduct by said defendants.

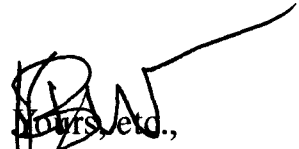
99. Each of the said defendants involved in such excessive force knew, or had reason to know, upon information and belief, that such use of force was excessive, and had a realistic opportunity to intervene to prevent such excessive use of force from occurring.

100. By reason of the foregoing, plaintiff Jasminelee Mejia have been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

WHEREFORE, the plaintiffs demand judgment against the defendants:

On the First Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Second Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Third Cause of Action in a sum in excess of the jurisdictional threshold of this Court, On the Fourth Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Fifth Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Sixth Cause of Action in a sum in excess of the jurisdictional threshold of this Court, On the Seventh Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Eighth Cause of Action in a sum in excess of the jurisdictional threshold of this Court and on the Ninth Cause of Action in a sum in excess of the jurisdictional threshold of this Court and such other and further relief as this court deems just and proper.

Dated: New York, New York
December 16, 2013

A handwritten signature in black ink, appearing to read 'KW', with a long horizontal stroke extending to the right.

Attorneys, etc.,

Kyle B. Watters

Watters & Svetkey, LLP.

Attorneys for Plaintiff

286 Madison Avenue - Suite 2200

New York, New York 10017

(212) 679-8999

VERIFICATION

STATE OF NEW YORK }
COUNTY OF } ss.:
}

DONNA WALKER, being duly sworn deposes and says:

I am one of the plaintiffs herein.

I have read the foregoing Complaint and know the contents thereof and the same is true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, as to those matters, I believe them to be true.

Donna Walker
DONNA WALKER

Sworn to before me on this
23 day of December, 2013

Notary Public

KYLE B. WATTERS
Notary Public State of New York
No. 02WA5031419
Qualified in Queens County
Commission Expires August 1, 1996

VERIFICATION

STATE OF NEW YORK }
COUNTY OF Kings } ss.:
}

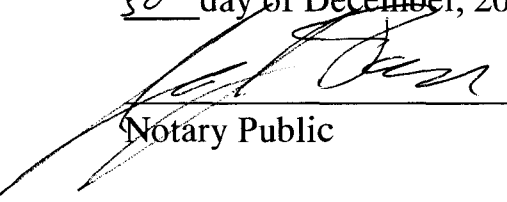
KENDRA EASSANASON, being duly sworn deposes and says:
ESANNASON

I am one of the plaintiffs herein.

I have read the foregoing Complaint and know the contents thereof and the same is true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, as to those matters, I believe them to be true.


KENDRA EASSANASON
ESANNASON

Sworn to before me on this
30th day of December, 2013


Notary Public

JOHN J. FARRELL
Notary Public, State of New York
Qualified in Kings County
No. 01FA6286905
My Commission Expires 08/05/2017

VERIFICATION

STATE OF NEW YORK }
COUNTY OF KINGS } ss.:
}

JASMINELEE MEJIA, being duly sworn deposes and says:

I am one of the plaintiffs herein.

I have read the foregoing Complaint and know the contents thereof and the same is true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, as to those matters, I believe them to be true.

Jasmine Lee Mejia
JASMINELEE MEJIA

Sworn to before me on this
30th day of December, 2013

~~Notary Public~~

JOHN J. FARRELL
Notary Public, State of New York
Qualified in Kings County
No. 01FA6296007

JOHN J. FARRELL
Notary Public, State of New York
Qualified in Kings County
No. 01FA6286905
My Commission Expires 08/05/2017